Supplemental Expert Rebuttal Report of Kenny Hyder

Dunnam & Dunnam LLP v. Dunham & Jones, Attorneys at Law, P.C., et al.

Civil Action No. 6:21-cv-1041-ADA-DGT

United States District Court, Western District of Texas, Waco Division

Prepared: April 16, 2026

Expert: Kenny Hyder, Principal — Hyder Media

Prepared in Rebuttal to: Caryn Brown Rebuttal Report dated April 9, 2026

I. Introduction and Scope of This Supplemental Report

This supplemental report is prepared in response to the Rebuttal Report of Caryn Brown dated April 9, 2026. Since the filing of my initial Expert Rebuttal Report (March 1, 2026), I have obtained a material development that warrants this supplement: **I have been granted full, direct access to all of Defendants' internal online advertising accounts**, including Google Ads, Microsoft Advertising (Bing Ads), and Meta Ads (Facebook/Instagram).

Using this access, I have generated comprehensive ad copy audit reports documenting **every advertisement ever created or run** by Dunham & Jones across all three major online advertising platforms. These reports span from 2016 through April 2026 and include every campaign, ad group, ad headline, ad description, keyword, negative keyword, extension, and ad creative asset in the account history.

The complete reports are attached as Exhibits HYDER-S001 through HYDER-S018, comprising **18 PDF documents totaling 7,383 pages**. A summary of these exhibits is provided in Section IX below.

> **Central Finding:** Across 7,383 pages of advertising records spanning ten years and three advertising platforms, **not a single advertisement contains any of the restricted name formulations enumerated in the 1998 Agreed Judgment**. The terms "Dunham Law Firm," "Dunham, Attorney at Law," "Dunhams," "Dunham and Dunham," and related restricted variants do not appear in any ad headline, description, keyword target, or extension

> — not in the restricted counties, and not anywhere else. Every advertisement in the account history runs under the name "Dunham & Jones."

Regarding Brown's assertion that "Neither expert had access to Defendants' internal advertising records" — this is no longer the case. The internal records have now been produced and independently audited. They confirm what my initial report concluded based on publicly available data: Dunham & Jones has not used the restricted name formulations in its online advertising.

Regarding Brown's criticism that my initial crawl was conducted after her report was disclosed (March 1, 2026): the purpose of both my initial report and this supplement is to demonstrate that anyone with access to publicly available marketing research tools — tools Brown claims expertise in — could verify compliance or document violations. Brown's initial report presented no hard evidence of violations despite her claimed use of industry-standard tools. If offenses existed during the relevant period, she would have been able to easily produce proof. She did not.

II. Response to Brown's Point 1: The Site Crawl Searched for the Wrong Term

A. The "dunnam" vs. "Dunham" distinction

Brown argues that my Screaming Frog crawl searched for "dunnam" rather than "Dunham," and that the restricted formulations all contain "Dunham," not "Dunnam." Brown's point here is off target for two reasons.

First, the Screaming Frog SEO Spider is a tool Brown herself claims to use. If any of the restricted name formulations — "Dunham Law Firm," "Dunhams," "Dunham and Dunham," or any related variant — appeared anywhere on Dunham & Jones' websites, Brown could produce proof using the same crawl methodology I employed. She has not done so. The absence of such proof from Brown's own analysis speaks louder than her criticism of my search term selection.

Second, I deliberately chose "dunnam" to address Brown's central confusion: her conflation of Google's algorithmic behavior with intentional conduct by Defendants. My crawl demonstrated that the string "dunnam" does not appear anywhere on DunhamLaw.com — yet Google still ranks the site for queries containing "dunnam." This proves that search rankings for phonetically similar names are the product of Google's algorithm, not the Defendants' doing. If Google ranks DunhamLaw.com for "dunnam" queries when the word does not even exist on the site, it follows

logically that Google will also rank the site for queries containing "Dunham" — because "Dunham" is the Defendants' actual legal surname.

Brown cites Ahrefs and my own SEMrush data showing DunhamLaw.com ranking at positions 6-9 for the keyword "dunhams," calling it "one of the specifically restricted name formulations." The ranking itself is proof only of Google's behavior, which neither party controls. Neither Dunham & Jones nor Dunnam & Dunnam has any ability to dictate how Google ranks organic search results. These rankings cannot be purchased or directly influenced — they are determined by Google's proprietary algorithm based on factors including name similarity, geographic relevance, and domain authority.

B. Live restricted-county pages on DunhamLaw.com

Brown identifies several live pages on DunhamLaw.com that reference restricted counties (Brazos, Bell, McLennan). Brown misunderstands the distinction between *advertising in restricted counties* and *having web pages*. Dunham & Jones is not restricted from doing business in any of the sixteen counties named in the 1998 Agreed Judgment. They are not restricted from having web pages describing their offices and practice areas in those locations. The 1998 Judgment restricts specific *name formulations* in *advertising* within those counties.

Having a web page titled "Not Guilty Verdicts | Dunham & Jones" about a Brazos County case, or a location archive page for "Killeen-Waco," is not advertising under a restricted name formulation. It is a law firm documenting its case results and office locations under its actual legal name. None of these pages use any restricted name formulation. As I now demonstrate conclusively with the complete advertising records (Section III below), Dunham & Jones does not advertise under restricted names in these or any other counties.

III. Response to Brown's Point 2: Google Ads Transparency Center — Now Superseded by Complete Account Records

---

This entire section of Brown's rebuttal is now rendered moot.

Brown argued that the Google Ads Transparency Center does not reveal geographic targeting settings, negative keyword lists, match type configurations, or search term reports. She is correct that the Transparency Center has these limitations. However, these limitations are no longer relevant because I now have **full, direct access to all of Defendants' online advertising accounts** and have produced complete records.

I have generated comprehensive ad copy audit reports from the actual advertising platforms:

- **Google Ads:** Complete ad history from 2016 through April 2026, including every campaign, ad group, responsive search ad, expanded text ad, Performance Max asset group, keyword (positive and negative), sitelink extension, callout extension, structured snippet, and image asset. Reports produced year-by-year: 12 annual reports plus an active ads snapshot. *(Exhibits HYDER-S001 through HYDER-S013, totaling 6,957 pages.)*
- **Microsoft Advertising (Bing Ads):** Complete ad history for 2024 (the only year with active spend, totaling approximately $297,000), including all 59 campaigns, 378 responsive search ads with full headline and description inventories, and 12,079 keywords. *(Exhibit HYDER-S014, 279 pages.)*
- **Meta Ads (Facebook/Instagram):** Complete ad history from 2023 through April 2026, including all campaigns, ad sets, ad creatives, primary text, headlines, descriptions, and images. *(Exhibits HYDER-S015 through HYDER-S018, totaling 143 pages with 4 additional pages for active snapshot.)*

In total, these reports comprise **18 exhibits totaling 7,383 pages** of advertising records across three platforms spanning a decade of advertising activity.

> **Finding:** Across all 7,383 pages of advertising records, covering every ad ever run on any digital advertising platform by Dunham & Jones from 2016 to the present, **none of the restricted name formulations from the 1998 Agreed Judgment appear in any advertisement, anywhere, at any time**. Every advertisement runs under the name "Dunham & Jones" or "Dunham & Jones Attorneys at Law, P.C." No ad uses "Dunham Law Firm," "Dunhams," "Dunham, Attorney at Law," "Dunham and Dunham," or any related restricted variant — not in headlines, not in descriptions, not in keyword targeting, not in extensions, and not in any county, restricted or otherwise.

This finding eliminates the need for discovery of advertising account internals. The complete internal records have now been produced and independently audited by an expert with over 20 years of experience in search engine marketing and paid advertising forensics. Brown's arguments regarding what the Google Ads Transparency Center cannot show are now academic — the actual account data has been examined and the results are conclusive.

Online advertising platforms are the only mechanism through which Dunham & Jones could violate the 1998 Judgment's advertising restrictions in a digital context. All of Brown's claims regarding Google organic ranking activity are explicitly not advertising-related. The Judgment

restricts Dunham & Jones from using specific name formulations in specified counties regarding *advertising efforts*. It does not restrict them from advertising in those counties — only from using the restricted name formulations in the advertising.

IV. Response to Brown's Point 3: HYDER000013 (SimilarWeb Paid Keywords)

Brown argues that my own SimilarWeb exhibit (HYDER000013) shows "active paid campaigns to restricted-county pages with real click data," citing keywords landing on Bell County and Brazos County pages on DunhamJones.com.

Brown's argument again conflates two distinct concepts: (1) *advertising in restricted counties*, which is permitted, and (2) *using restricted name formulations in advertising*, which is prohibited. The 1998 Agreed Judgment restricts specific name formulations; it does not prohibit Dunham & Jones from advertising its legal services in Bell, Brazos, or any other county.

Furthermore, Brown's own citation of HYDER000013 actually *supports* Defendants' compliance posture. The landing pages she identifies are on **DunhamJones.com** — not DunhamLaw.com. This demonstrates that Dunham & Jones is going out of its way to use the DunhamJones.com domain in restricted counties rather than its primary DunhamLaw.com domain. This is exemplary, above-and-beyond behavior to avoid any potential confusion. It is not something they are required to do, nor is it something I would recommend from a professional standpoint — they are voluntarily accepting the SEO disadvantage of splitting their web presence across two domains to satisfy concerns raised by the Plaintiff.

The complete ad reports now attached (Exhibits HYDER-S001 through HYDER-S018) definitively confirm that no restricted name formulations have ever been used in Dunham & Jones' paid advertising targeting or ad copy — not in Bell County, not in Brazos County, and not anywhere else.

V. Response to Brown's Point 4: DunhamJones.com Analysis

A. Organic "dunnam" rankings pointing to Waco pages

Brown notes that all 12 "dunnam" keyword rankings for DunhamJones.com point to Waco-specific pages. Brown continues to conflate web properties — websites — with advertising practices and branding. Dunham & Jones is permitted to own and operate websites and domain names. They are permitted to do business in Waco, Texas, under their own legal name. The fact that they have web

pages for their Waco office is logical and standard business practice. Is Brown suggesting that Dunham & Jones is not permitted to have a physical address in Waco? Having a web page for a business location is the digital equivalent of a door sign — it is not "advertising" in the sense contemplated by the 1998 Judgment.

The fact that Google algorithmically associates these pages with "dunnam" queries is, again, the product of Google's name-similarity matching — not any action by Defendants.

B. DunhamJones.com registration timing

Brown characterizes DunhamJones.com — registered within 48 hours of the June 15, 2011 Agreed Order of Dismissal — as "the mechanism through which the enjoined conduct migrated to an alternative vehicle." It is my professional opinion that Dunham & Jones did not need to implement the DunhamJones.com redirect measure. From the best of my understanding of the restrictions at issue, they could continue to operate their primary, long-established domain (DunhamLaw.com) in the restricted counties without violating the Judgment, as long as they do not use the restricted name formulations in their advertising. They chose to redirect restricted-county traffic to DunhamJones.com as an extra, voluntary step. Brown should recognize this as a good-faith compliance effort rather than characterize it as evasion.

VI. Response to Brown's Point 5: Redirect Timing and 2020 Show Cause Order

A. Redirect implementation dates

The redirect implementation dates are known and precede Brown's February 2026 report by many years. Regardless, as stated in Section V.B above, it is my professional opinion that these redirects are not required by any existing judgment. They represent a voluntary accommodation.

B. The 2020 Show Cause Order

Brown cites the August 11, 2020 Show Cause Order, Item F, which examined Defendants' use of the URL "dunhamlaw.com." No judgment was entered against Dunham & Jones regarding their use of domain names. The ongoing nature of this debate stems, in my professional assessment, from a fundamental misunderstanding of how the internet works on the part of non-technical participants.

Websites are not advertising. They are digital properties. Advertising on the internet requires payment to a platform (Google, Microsoft, Meta, etc.). Websites exist independently of advertising. One does not need a website to advertise online, and one does not need to advertise online to have a website. They are separate concepts and practices.

Dunham & Jones could theoretically register domain names matching restricted name formulations and still not be in contempt of the 1998 Judgment — so long as they do not actively solicit traffic to those domains in the restricted counties using paid advertising under the restricted names. The fact remains, as documented across 7,383 pages of advertising records: Dunham & Jones does not, and has never, run advertising using any of the restricted name formulations on any online advertising platform.

VII. Response to Brown's Point 6: Methodology

Brown now names Ahrefs as her organic keyword analysis tool and confirms her use of Screaming Frog SEO Spider. Two observations:

First, organic ranking data is not relevant to the central question of this case. Google organic rankings have nothing to do with advertising. They are determined by Google's algorithm and cannot be bought or paid for. In my previous analysis, organic ranking data was used only to highlight the insignificance of any traffic Dunham & Jones might receive as a result of Google's name-similarity algorithm — traffic that is unwanted by Dunham & Jones and outside anyone's control.

Second, if Brown actually used Screaming Frog to crawl Defendants' websites, she would have the same ability I demonstrated to search for any text string across the entire site. If the restricted name formulations appeared anywhere on the sites, a Screaming Frog crawl would produce definitive proof. Brown has not produced any such proof because it does not exist.

VIII. Response to Brown's Point 7: Discovery Requests

I have now produced exhaustive records detailing every ad ever run on any digital advertising platform on behalf of Dunham & Jones. These records comprise **18 PDF exhibit documents totaling 7,383 pages**, covering:

- Google Ads: 12 annual reports (2016–2026) plus active ads snapshot — 6,957 pages
- Microsoft Advertising (Bing Ads): 2024 full report — 279 pages

- Meta Ads: 4 annual reports (2023–2026) plus active ads snapshot — 147 pages

These reports include every campaign name, ad group name, ad headline, ad description, final URL, keyword target (positive and negative), match type, ad extension, and creative asset in the entire account history. Brown's request for internal advertising records has been satisfied in full. The records confirm zero use of restricted name formulations.

IX. Exhibit Index

Exhibit	Description	Pages
HYDER-S001	Google Ads — Active Ads (current snapshot)	364
HYDER-S002	Google Ads — 2016 Ad Copy Report	542
HYDER-S003	Google Ads — 2017 Ad Copy Report	670
HYDER-S004	Google Ads — 2018 Ad Copy Report	641
HYDER-S005	Google Ads — 2019 Ad Copy Report	662
HYDER-S006	Google Ads — 2020 Ad Copy Report	870
HYDER-S007	Google Ads — 2021 Ad Copy Report	679
HYDER-S008	Google Ads — 2022 Ad Copy Report	620
HYDER-S009	Google Ads — 2023 Ad Copy Report	454
HYDER-S010	Google Ads — 2024 Ad Copy Report	538
HYDER-S011	Google Ads — 2025 Ad Copy Report	516
HYDER-S012	Google Ads — 2026 Ad Copy Report (Jan–Apr)	401
HYDER-S013	Bing Ads — 2024 Ad Copy Report (59 campaigns, 378 ads, 12,079 keywords)	279
HYDER-S014	Meta Ads — Active Ads (current snapshot)	27
HYDER-S015	Meta Ads — 2023 Ad Copy Report	40
HYDER-S016	Meta Ads — 2024 Ad Copy Report	38
HYDER-S017	Meta Ads — 2025 Ad Copy Report	35
HYDER-S018	Meta Ads — 2026 Ad Copy Report (Jan–Apr)	3
Total		**7,383**

Each exhibit was generated directly from the advertising platform's API using authenticated account access. The reports contain the complete, unedited record of every advertisement in the account history. They are reproducible by any party granted the same account access.

X. Summary of Opinions

Based on my review of Brown's April 9, 2026 Rebuttal Report, my continued analysis of Defendants' digital properties, and my examination of the complete advertising account records now produced, I hold the following opinions to a reasonable degree of professional certainty:

1. **The complete advertising records conclusively establish compliance.** Across 7,383 pages of ad copy records spanning three platforms and ten years, no restricted name formulation from the 1998 Agreed Judgment appears in any advertisement. Every ad runs under "Dunham & Jones" or "Dunham & Jones Attorneys at Law, P.C."
2. **Brown's arguments regarding organic search rankings remain irrelevant to the advertising restrictions at issue.** Organic search rankings are determined by Google's algorithm alone. They cannot be purchased, directly controlled, or constituted as "advertising" under any standard industry definition. Google's ranking of Dunham & Jones properties for queries containing "dunnam" or "dunhams" is a function of name similarity — not Defendants' conduct.
3. **Having web pages for business locations is not "advertising."** Dunham & Jones operates offices in the restricted counties and is permitted to do so. Maintaining web pages describing those offices under the firm's legal name does not constitute advertising using restricted name formulations.
4. **The DunhamJones.com redirect system represents voluntary, good-faith compliance** — not evasion. Dunham & Jones is not required to redirect restricted-county traffic away from DunhamLaw.com but has chosen to do so as an additional accommodation.
5. **Brown's discovery requests regarding advertising records have been fully satisfied.** The 18 exhibits attached to this report represent the complete, unredacted history of every advertisement run by Dunham & Jones on every digital advertising platform.
6. **Brown's corrective advertising estimates remain unsupported and disproportionate.** Given the complete absence of restricted name formulations in any advertising record, there is no conduct requiring correction. The proposed $266,000–$499,000 annual corrective advertising budget is not only unsupported by methodology but presupposes violations that the evidence affirmatively disproves.

Respectfully submitted,

_____

Kenny Hyder

Principal, Hyder Media

April 16, 2026

I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge and professional judgment. I am being compensated at a rate of $300 per hour for my time in this matter. My compensation is not contingent on the outcome of this case or the opinions expressed herein.